

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.C.R. 1048
(Reference to printed resolution)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The resolution as proposed to be amended is reprinted as follows:

2 1. Under the power of the referendum, as vested in the Legislature,
3 the following measure, relating to nuisances, is enacted to become valid
4 as a law if approved by the voters and on proclamation of the Governor:

5 AN ACT

6 AMENDING SECTIONS 12-991, 13-2908 AND 13-2917, ARIZONA REVISED
7 STATUTES; RELATING TO NUISANCES.

8 Be it enacted by the Legislature of the State of Arizona:

9 <<Section 1. ~~Section 12-991, Arizona Revised Statutes,~~
10 ~~is amended to read:~~

11 ~~12-991. Nuisance; applicability; residential property~~
12 ~~used for crime; action to abate and prevent;~~
13 ~~notice; definitions~~

14 ~~A. Residential property that is regularly used in the~~
15 ~~commission of a crime is a nuisance, and the criminal activity~~
16 ~~causing the nuisance shall be enjoined, abated and prevented.~~

17 ~~B. If there is reason to believe that a nuisance as~~
18 ~~described in subsection A of this section exists, the attorney~~
19 ~~general, the county attorney, the city attorney, an~~
20 ~~association of homeowners or property owners established by a~~
21 ~~recorded contract or other declaration, including a~~
22 ~~condominium association as defined in section 33-1202 and a~~
23 ~~planned community association as defined in section 33-1802,~~
24 ~~or a resident of a county or city who is affected by the~~
25 ~~nuisance may bring an action in superior court against the~~
26 ~~owner, the owner's managing agent or any other party~~
27 ~~responsible for the property to abate and prevent the criminal~~
28 ~~activity.~~

~~C. The court shall not assess a civil penalty against any person unless that person knew or had reason to know of the criminal activity.~~

~~D. An injunction that is ordered pursuant to this article shall be necessary to protect the health and safety of the public or prevent further criminal activity.~~

~~E. An order shall not affect the owner's interest in the property unless all of the following apply:~~

~~1. The owner is a defendant in the action.~~

~~2. The owner knew of the criminal activity.~~

~~3. The owner failed to take reasonable, legally available actions to abate the nuisance.~~

~~F. If the owner, the owner's managing agent or the party responsible for the property knows or has reason to know of the criminal activity and fails to take reasonable, legally available actions to abate the nuisance, a governmental authority may abate the nuisance. The court may assess the owner for the cost of abating the nuisance. On recording with the county recorder in the county in which the property is located, the assessment is prior to all other liens, obligations or encumbrances except for prior recorded mortgages, restitution liens, child support liens and general tax liens. A city, town or county may bring an action to enforce the assessment in the superior court in the county in which the property is located.~~

~~G. For purposes of this section, an owner, the owner's managing agent or the party responsible for the property is deemed to know or have reason to know of the nuisance if the owner, the owner's managing agent or the party responsible for the property has received notice from a governmental authority of documented reports of criminal offenses occurring on the residential property.~~

~~H. A law enforcement agency, a city attorney, a county attorney, the attorney general or any other person who is at least twenty-one years of age may serve the notice provided for in subsection G of this section, either personally or by certified mail. If personal service or service by certified mail cannot be completed or the address of the person to be notified is unknown, notice may be served by publishing the notice three times within ten consecutive days in a newspaper of general circulation in the county in which the property is located. In all cases a copy of the notice shall be posted on the premises where the nuisance exists.~~

~~I. The notice shall be printed in at least twelve-point type in substantially the following form:~~

~~Notice~~

~~This is formal notice that the property at (insert address and unit number if applicable) has had (insert number of) arrests or (insert number of) documented reports of alleged criminal activity and is considered a nuisance under section 12-991, Arizona Revised Statutes. A copy of the police report numbers is attached. Police reports are available at (insert applicable police agency):~~

~~Within five business days you must begin to take action that is legally available to you to abate the nuisance from the property. If you fail to do so, a restraining order to abate and prevent continuing or recurring criminal activity will be pursued.~~

~~If you fail to cooperate to abate the nuisance, the appropriate authorities will abate the nuisance and their costs will be a lien on the property.~~

~~You may contact (local agency) in order to obtain information on how to abate the nuisance.~~

~~J. For the purposes of this article:~~

~~1. "CRIME" INCLUDES THE CREATION OF EXCESSIVE MARIJUANA SMOKE AND ODOR.~~

~~1. 2. "Owner" means a person or persons or a legal entity listed as the current title holder as recorded in the official records of the county recorder in the county in which the title is recorded.~~

~~2. 3. "Owner's managing agent" means a person, corporation, partnership or limited liability company that is authorized by the owner to operate and manage the property.>>~~

~~<<Section 1. Section 13-2901, Arizona Revised Statutes, is amended to read:~~

~~13-2901. Definitions~~

~~In this chapter, unless the context otherwise requires:~~

~~1. ["EXCESSIVE MARIJUANA SMOKE OR ODOR" MEANS MARIJUANA SMOKE OR ODOR THAT IS CAPABLE OF BEING DETECTED BY A PERSON ON THE PRIVATE PROPERTY OF ANOTHER PERSON.]~~

~~2.] "Marijuana"[:~~

~~(a)] Means all parts of any plant of the genus cannabis[,-] from which the resin has not been extracted, whether growing or not, and the seeds of such [A] plant. [Marijuana]~~

~~[(b)] Does not include the mature stalks of such [A] plant[,-] or the sterilized seed of such [A] plant [which] [THAT] is incapable of germination.~~

~~[2.] [3.] "Public" means affecting or likely to affect a substantial group of persons.>>~~

1 Sec. 2. Section 13-2908, Arizona Revised Statutes, is
2 amended to read:

3 13-2908. Criminal nuisance; presumption; classification

4 A. A person commits criminal nuisance:

5 1. If, by conduct either unlawful in itself or
6 unreasonable under the circumstances, ~~such~~ THE person
7 recklessly creates or maintains a condition ~~which~~ THAT
8 endangers the safety or health of others.

9 2. By knowingly conducting or maintaining any premises,
10 place or resort where persons gather for purposes of engaging
11 in unlawful conduct.

12 B. IT IS PRESUMED THAT A PERSON WHO CREATES EXCESSIVE
13 MARIJUANA SMOKE ~~[AND]~~ [OR] ODOR CAUSES A CONDITION THAT
14 ENDANGERS THE SAFETY OR HEALTH OF OTHERS.

15 ~~B.~~ C. Criminal nuisance is a class 3 misdemeanor.

16 Sec. 3. Section 13-2917, Arizona Revised Statutes, is
17 amended to read:

18 13-2917. Public nuisance; abatement; presumption;
19 classification

20 A. It is a public nuisance, and is no less a nuisance
21 because the extent of the annoyance or damage inflicted is
22 unequal, for anything:

23 1. To be injurious to health, indecent, offensive to
24 the senses or an obstruction to the free use of property that
25 interferes with the comfortable enjoyment of life or property
26 by an entire community or neighborhood or by a considerable
27 number of persons.

28 2. To unlawfully obstruct the free passage or use, in
29 the customary manner, of any navigable lake, river, bay,
30 stream, canal or basin, or any public park, square, street or
31 highway.

32 B. It is a public nuisance for any person to sell,
33 offer to sell, transfer, trade or disseminate any OBSCENE item
34 ~~which is obscene~~ as defined in section 13-3501, within two
35 thousand feet, measured in a straight line, of the nearest
36 boundary line of any of the following:

37 1. Any building used as a private or public elementary
38 or high school.

39 2. Any public park.

40 3. Any residence district as defined in section 28-101.

41 C. The county attorney, the attorney general or the
42 city attorney may bring an action in superior court to abate,
43 enjoin and prevent the activity described in subsections A and
44 B of this section.

45 D. IT IS PRESUMED THAT THE CREATION OF EXCESSIVE
46 MARIJUANA SMOKE ~~[AND]~~ [OR] ODOR IS INJURIOUS TO HEALTH,
47 INDECENT, OFFENSIVE TO THE SENSES AND AN OBSTRUCTION TO THE

1 FREE USE OF PROPERTY THAT INTERFERES WITH THE COMFORTABLE
2 ENJOYMENT OF LIFE OR PROPERTY AND IS A PUBLIC NUISANCE.

3 ~~D.~~ E. Any person who knowingly maintains or commits a
4 public nuisance or who knowingly fails or refuses to perform
5 any legal duty relating to the removal of a public nuisance is
6 guilty of a class 2 misdemeanor.

7 2. The Secretary of State shall submit this proposition to the
8 voters at the next general election as provided by article IV, part 1,
9 section 1, Constitution of Arizona.

10 Enroll and engross to conform

11 Amend title to conform

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